

25VECV04171 25VECV04171

County: los-angeles

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Case Number: 25VECV04171 Hearing Date: September 11, 2026 Dept: I

25VECV04171 SCHOSHINSKI v. SINGER

September 11, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Compel Further Responses to Form
Interrogatories (Set One)

I.

Background

This is a malpractice action arising out of the attorney-client relationship between Plaintiff Terence Schoshinski ("Plaintiff") and Defendant Sheldon F. Singer ("Defendant"). On July 25, 2025, Plaintiff filed the operative Complaint against Defendant, asserting causes of action for: (1) Legal Malpractice; (2) Breach of Fiduciary Duty; (3) Constructive Fraud; and (4) Intentional Misrepresentation.

On October 27, 2025, Defendant filed its Answer to the Complaint.

On August 13, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Form Interrogatories (Set One). On August 28, 2026, Defendant filed an Opposition. On September 2, 2026, Plaintiff filed a Reply.

II. Discussion

Meet and Confer

The Civil Discovery Act requires a moving party to attest to a good faith meet and confer effort as described in Code of Civil Procedure Section 2016.040 before a motion to compel further discovery responses may be granted. (Code Civ. Proc., § 2030.300, subd. (b)(1).) Specifically, “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).) “[A]ttempting informal resolution means more than the mere attempt by the discovery proponent ‘to persuade the objector of the error of his ways’ and ‘a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

Here,

Plaintiff avers that on August 4, 2026, he sent Defendant’s counsel of record, Jennifer K. Saunders and Lucy F. Wang, a written meet and confer letter concerning the discovery at issue in the instant motion. (Schoshinski Decl., ¶6, Ex. B.) Specifically, Plaintiff addressed Form Interrogatories (“FROG”) (Set One) nos. 12.1 and 15.1 and requested supplemental responses by August 10, 2026. (Id.) Plaintiff also requested an extension for filing a motion to compel, which Defendant did not agree to. (Id., ¶7.) On August 10, 2026, Ms. Saunders replied and supplied certain last known addresses in response to FROG no. 12.1 as a courtesy and stated the existing response to FROG no. 15.1 was compliant. (Id., ¶8, Ex. C.) On August 11, 2026, Plaintiff sent a supplemental meet and confer letter requesting a supplemental response to FROG no. 2.5 by August 11, 2026 and offered to meet and confer via telephone. (Id., ¶10, Ex. D.)

Although the parties did not meet and confer in accordance with the Code of Civil Procedure Sections 2016.040 and 20230.300, subdivision (b)(1), Plaintiff offered to meet and confer via telephone and received no response from Defendant’s counsels of record. Thus, the Court will exercise its discretion and rule on the merits below.

Motion to Compel Further Responses

A party who receives interrogatories must respond separately to each individual request by providing an answer containing the information sought, producing writings, or an objection. (Code Civ. Proc., § 2030.210, subd. (a).) A party may then move for a further response to interrogatories where an answer to the requests are evasive or incomplete or where an objection is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

Notice of the motion must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2030.300, subd. (c).)

Finally, California Rules of Court, Rule 3.1345 requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules Ct., Rule 3.1345, subd. (a)(3).) 2

Plaintiff moves for an order compelling Defendant to provide further responses to Plaintiff's Form Interrogatories ("FROG") (Set One) nos. 2.5, 12.1, and 15.1 on the grounds that Defendant's responses are evasive, incomplete, and contain objections without merit.

In opposition, Defendant argues that the present motion is untimely. Specifically, Defendant served his initial responses to Plaintiff's FROGs on June 26, 2026 via email. As such, Plaintiff had until August 12, 2026 to file any motion to compel further responses; forty-five (45) calendar days plus two additional court days for electronic service. The present motion was not filed until August 13, 2026, which is one day after the deadline to file such motion expired. Plaintiff does not contest that the present motion was accepted on August 13, 2026 but requests that the Court pursuant to Los Angeles Superior Court Order Rescinding General Order in Re Mandatory Electronic Filing for Civil and Los Angeles Superior Court ("LASC"), Local Rule 3.4, subdivision (g) deem the motion filed on attempted transmission date of August 12, 2026 at 11:32:59 p.m. (Reply at 2:15-3:5.)

Under Local Rule 3.4, subdivision (g),

“[n]otwithstanding any other provision of this Local Rule, if a digital document is not filed in due course because of (1) an interruption in service; (2) a transmission error that is not the fault of the transmitter; or (3) a processing failure that occurs after receipt, the court may order, either on its own motion or by noticed motion submitted with a declaration for court consideration, that the document be deemed filed and/or that the document’s filing date conform to the attempted transmission date.” (LASC, Local Rule 3.4, subd. (g).)

Plaintiff’s reply declaration

demonstrates that the present motion and supporting papers were electronically transmitted through Journal Technologies on August 12, 2026 at 11:32:59 p.m. (Schoshinski Suppl. Decl., ¶3, Ex. A.) The filing was rejected pursuant to Section 6(a) of the First Amended General order filed 5/3/19, which states: “electronic documents must be submitted in text searchable format.” (Id.) Plaintiff received the notice of rejection on August 13, 2026 at 12:39 p.m. (Id., ¶4, Ex. B.) Upon receiving the rejection, Plaintiff immediately corrected the formatting issues and resubmitted the motion and supporting papers on August 13, 2026 at 2:59:52 p.m. and it was accepted. (Id., ¶5, Ex. C.)

Therefore, the Court grants Plaintiff’s request to conform the filing date of instant motion and supporting papers to the attempted transmission date.

As to the merits of the motion, the Court finds that further responses to FROG nos. 2.5, 12.1, and 15.1 are warranted for the reasons set forth below.

With respect to FROG 2.5, Plaintiff’s operative Complaint seeks damages, costs, attorney’s fees, and pre-judgment and post-judgment interest, thus for purposes of potential enforcement of a judgment in this action the information sought is relevant and/or reasonably calculated to lead to discovery of relevant evidence. Pursuant to Code of Civil Procedure Section 2017.010, “any party may obtain discovery regarding any matters, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.)

In regards to FROG no. 12.1, Defendant’s courtesy supplemental response via meet and confer letter is still incomplete

as it fails to provide the telephone number of the individuals whose addresses and names were provided. (Plf. Sep. Stmt at 2:21-28; Schoshinski Decl., ¶10, Ex. D.) Next, the response to FROG no. 15.1 is evasive and contain objections without merit. In fact, Defendant fails to make the requisite showing that information sought contains attorney-client privilege and/or work-product privilege information. (Venture Law Group v. Superior Court (2004) 118 Cal.App.4th 96, 102 [“In general, when a party asserts the attorney-client privilege, that party has the burden of showing the preliminary facts necessary to support the privilege.”].) Furthermore, Defendant completely failed to answer subparts (a) and (b). Finally, Defendant’s response does not provide sufficient information to avail himself to Code of Civil Procedure Section 2030.230.

Request for Discovery Sanctions

Code Civil

Procedure Section 2030.300, subdivision (d) provides for the imposition of monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel further unless the court finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

“A pro se litigant cannot recover attorney’s fees as a discovery sanction, but he can recover the ‘reasonable expenses’ he has ‘incurred,’ including photocopying, computer-assisted legal research, and other identifiable and allocable costs.” (Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1017.)

Here, Plaintiff seeks discovery sanctions for expenses incurred for filing the present motion. However, Plaintiff has not provided the Court with any information regarding the amount in filing costs he incurred as it pertains to the present motion. Thus, the Court will not impose any discovery sanctions at this time.

III.

Conclusion

Accordingly, Plaintiff Terence Schoshinski’s Motion to Compel Further Responses to Form Interrogatories (Set

One) is GRANTED. The Request for Discovery Sanctions is DENIED.

Defendant Sheldon F. Singer is ordered
to provide further verified, code-compliant responses to Form Interrogatories
(Set One) nos. 2.5, 12.1, and 15.1.

Plaintiff Terence Schoshinski to give
notice.